

Part III architecture and reach

PART III, ARTICLES 12-35

GATEWAY -> Article 12 defines State; Article 13 controls inconsistent law

RIGHTS -> 14-18 equality | 19-22 freedom | 23-24 exploitation

25-28 religion | 29-30 culture/education | 32 remedies

CONTROLS -> 31A-31C savings | 33-35 special powers

BENEFICIARY != RESPONDENT

citizens: 15, 16, 19, 29

persons: 14, 20, 21, 22, 23, 24, 25

Article 30 text: all minorities

direct private reach: 15(2), 17, 23, 24

legislation-mediated private reach: 15(5)

ANSWER ORDER: holder -> respondent -> right -> exact limit -> test -> remedy -> caveat.

Article 12 State and Article 226 public-duty boundary

ARTICLE 12 EXPRESS BODIES

Union Government/Parliament | State Government/Legislature | local authorities

OTHER AUTHORITY / INSTRUMENTALITY

R.D. Shetty (1979) -> functional indicators

Ajay Hasia (1981) -> form is not decisive

Pradeep Kumar Biswas (2002) -> financial + functional + administrative
domination of a pervasive character

INDICATORS: ownership/finance | control | public importance | monopoly
transferred department | cumulative real relationship

SEPARATE QUESTION:

not State under Article 12

-> may still perform a public duty

-> Article 226 can reach the public-law element.

Article 13, invalidity doctrines and amendment route

ARTICLE 13

- 13(1) pre-Constitution law -> void to extent of inconsistency
- 13(2) State shall not make abridging law -> void to extent
- 13(3) ordinance/order/bye-law/rule/regulation/notification/custom/usage
- 13(4) constitutional amendment follows Article 368

DOCTRINES

- severability -> workable valid residue + legislative intent
- eclipse -> classic pre-Constitution law lies dormant; may revive
- waiver -> Bhasheshwar Nath (1959): holder cannot validate unconstitutional power
- prospective overruling -> Golaknath (1967) calibrated temporal effect

AMENDMENT CONTROL

- Shankari Prasad (1951) -> amendment not ordinary Article 13 law
- 24th Amendment -> express Article 368 power + Article 13(4)
- Kesavananda Bharati (1973) -> every Part amendable, basic structure not destructible.

Mandatory doctrine timeline

1950 A.K. GOPALAN -> narrow procedure; siloed rights
1951 CHAMPAKAM -> communal admission allocation invalid; First Amendment / 15(4)
1951 SHANKARI PRASAD -> amendment not ordinary law under Article 13
1967 GOLAKNATH -> prospective restriction on FR-amending power
1970 R.C. COOPER -> effect of State action; silos weaken
1973 KESAVANANDA -> amendment subject to basic structure
1978 MANEKA GANDHI -> fair, just, reasonable procedure; 14-19-21 link
1980 MINERVA MILLS -> limited amending power; Part III-IV harmony
1981 WAMAN RAO -> 24 April 1973 Ninth Schedule boundary
2007 I.R. COELHO -> later Ninth Schedule entries face basic-structure review
2017 SHAYARA BANO -> 3:2 talaq-e-biddat invalid; Nariman-Lalit opinion uses manifest arbitrariness
2017 PUTTASWAMY -> nine judges; privacy intrinsic to Article 21 and Part III
2018 NAVTEJ -> consensual adult same-sex intimacy decriminalised
2018 JOSEPH SHINE -> adultery offence invalidated
2020 ANURADHA BHASIN -> internet as medium; publication, review, proportionality.

Article 14 equality code

TWIN EXPRESSIONS

equality before law -> negative / no privilege
equal protection -> positive / like treatment in like circumstances

CLASSIFICATION

intelligible differentia
+ rational nexus to statutory objective
= permissible classification, not class legislation

ANTI-ARBITRARINESS

E.P. Royappa (1974) -> equality opposes arbitrariness
Maneka Gandhi (1978) -> non-arbitrary fair State action
Shayara Bano (2017) -> manifest arbitrariness used in Nariman-Lalit opinion

SUBSTANTIVE EQUALITY

identical treatment can preserve disadvantage;
clause-specific support may be constitutionally authorised.

Articles 15-16 and reservation chronology

ARTICLE 15

- (1) religion/race/caste/sex/place of birth
- (2) specified access prohibition -> direct private reach
- (3) women/children | (4) SEBC/SC/ST
- (5) admissions incl private aided/unaided; excludes Article 30(1)
- (6) EWS incl up to 10%

ARTICLE 16

- (1)-(2) public-employment equality
- (3) residence by Parliamentary law
- (4) backward class + inadequate representation
- (4A) SC/ST promotion | (4B) backlog | (5) religious office | (6) EWS

TIMELINE

Champakam 1951 -> First Amendment / 15(4)
Indra Sawhney 1992 -> creamy layer; ordinary 50% ceiling; no 16(4) promotion
77th/81st/82nd/85th -> promotion/backlog/standards/seniority
Nagaraj 2006 / Jarnail 2018 -> data, inadequacy, efficiency
103rd + Janhit 2022 (3:2) -> EWS upheld
Davinder Singh 2024 -> evidence-based SC sub-classification permitted.

Articles 17-18: constitutional anti-hierarchy

ARTICLE 17

- untouchability abolished; practice in any form forbidden
- disability enforcement punishable by law
- direct horizontal reach
- Protection of Civil Rights Act 1955
- SC/ST (Prevention of Atrocities) Act 1989
- LIMIT: historical caste meaning, not every social avoidance

ARTICLE 18

- State shall not confer titles except military/academic distinctions
- citizen cannot accept title from foreign State
- office-holder controls on foreign title/present/emolument
- Balaji Raghavan (1996): Bharat Ratna/Padma are not prohibited titles
 - but cannot be used as prefixes/suffixes

TRAP: Article 17 belongs to equality, not exploitation.

Article 19 freedoms and exact restriction grounds

ARTICLE 19(1): CITIZENS ONLY

- (a) speech/expression -> 19(2): sovereignty/integrity; State security;
friendly relations; public order; decency/morality; contempt;
defamation; incitement
- (b) peaceful unarmed assembly -> 19(3): sovereignty/integrity; public order
- (c) association -> 19(4): sovereignty/integrity; public order; morality
- (d) movement + (e) residence -> 19(5): general public; ST protection
- (g) profession/trade/business -> 19(6): general public; qualifications;
State monopoly

DISTINCTIONS

- press freedom derives from 19(1)(a)
- no Fundamental Right to strike
- foreign travel -> Article 21, not 19(1)(d)
- listed grounds are closed and not interchangeable.

Speech, press, digital medium and current criminal-law boundary

1950 Romesh Thappar / Brij Bhushan -> circulation and prior restraint
1951 First Amendment -> reasonable + public order + friendly relations + incitement
1962 Kedar Nath Singh -> old 124A upheld through incitement/public-disorder reading
1963 Sixteenth Amendment -> sovereignty and integrity
2015 Shreya Singhal -> 66A void; 69A retained with safeguards; 79 read down
2020 Anuradha Bhasin -> speech/trade through internet; orders published,
reviewed and proportionate; no indefinite suspension
2024 Electoral Bonds -> political-funding information under 19(1)(a);
unlimited corporate-contribution change arbitrary
1 JUL 2024 BNS 152 operative -> distinct secession/rebellion/subversion text
28 AUG 2025 vires notice -> no located final merits decision by 7 SEP 2026

TRAP: internet is a medium of protected freedoms, not an unlimited standalone holding.

Article 20 criminal safeguards

ARTICLE 20: ALL PERSONS

- 20(1) no retrospective offence or enhanced penalty
beneficial retrospectivity may operate
- 20(2) no prosecution AND punishment twice for same offence
not every departmental/civil consequence
- 20(3) accused + compulsion + testimonial communication against self

EVIDENCE BOUNDARY

- Kathi Kalu Oghad (1961) -> fingerprints/handwriting/physical material distinct
- Selvi (2010) -> involuntary narco/polygraph/brain mapping violates protection

EMERGENCY CORE

- Article 359 order can never include Article 20 after the 44th Amendment.

Article 21 evolution, dignity and derived rights

A.K. Gopalan (1950) -> narrow procedure and silos

R.C. Cooper (1970) -> effects approach; silos weaken

Maneka Gandhi (1978) -> fair, just, reasonable procedure + 14-19-21 interlock

NAMED DERIVED-RIGHT ANCHORS

Francis Coralie -> dignity

Hussainara Khatoon -> speedy trial

M.H. Hoskot -> legal aid

Olga Tellis -> livelihood + fair procedure, not no-eviction immunity

D.K. Basu -> arrest safeguards/compensation

Parmanand Katara / Paschim Banga -> emergency medical care

environmental cases -> clean air/water

Shafin Jahan -> adult marital choice

LIMIT: judicially enforceable floor, not an unlimited welfare-policy code.

Privacy, autonomy, DNA and data status

PUTTASWAMY (2017), NINE JUDGES

 bodily + decisional + informational privacy

 legality -> legitimate aim -> proportionality -> procedural safeguards

AUTONOMY

 Navtej (2018) -> consensual adult same-sex intimacy

 Joseph Shine (2018) -> adultery offence invalidated

 Supriyo (2023) -> Court did not rewrite SMA to create same-sex marriage

 review dismissed -> 9 January 2025

DNA / PATERNITY

 bodily integrity + truth + child's dignity

 Bhabani Prasad Jena -> eminent need / caution

 BSA 2023 section 116 -> legitimacy presumption and non-access

DPDP: G.S.R. 843(E)/846(E), 13 NOV 2025 -> phased commencement;

 whole regime not operative on 7 SEP 2026.

Article 21A and Article 22

ARTICLE 21A

Mohini Jain 1992 -> education/dignity
Unni Krishnan 1993 -> bounded entitlement
86th Amendment 2002 -> free/compulsory education, ages 6-14
RTE Act 2009 -> implementation
25% obligation -> covered non-minority unaided schools
Pramati 2014 -> Article 30 minority-institution boundary
below six -> Article 45 | parent/guardian duty -> 51A(k)

ARTICLE 22

ordinary arrest -> grounds + lawyer + magistrate within 24 hours
preventive detention -> separate clauses (4)-(7), grounds/representation
operative no-Board ceiling -> three months
44th Amendment two-month substitution -> not commenced.

Articles 23-24 exploitation

ARTICLE 23

trafficking | begar (forced unpaid labour) | similar forced labour
available to persons; applies against State and private actors
PUDR (1982) -> economic compulsion / below legal minimum can be forced labour
Bandhua Mukti Morcha (1984) -> bonded labour + dignity + enforcement
23(2) compulsory public service allowed without religion/race/caste/class bias

ARTICLE 24

child below 14
no factory, mine or hazardous employment

STATUTORY LAYER

Bonded Labour System (Abolition) Act 1976
Child and Adolescent Labour Act 1986, amended 2016

TRAP: constitutional Article 24 and the broader statute are not identical.

Articles 25-28 and principled-distance secularism

ARTICLE 25 -> all persons; conscience; profess/practise/propagate
limits: public order, morality, health, other FRs
25(2): secular regulation + social reform
Rev Stainislaus (1977): propagate != force/fraud conversion

ARTICLE 26 -> denominations
institutions | religious affairs | property
public order, morality, health; autonomy != maladministration

ARTICLE 27 -> no specifically appropriated religion-promoting tax
general tax / regulatory fee require separate analysis

ARTICLE 28
wholly State-maintained -> no instruction
State-administered trust/endowment -> permitted
recognised/aided -> no compelled attendance without consent

MODEL: protection + equal engagement + secular regulation + reform.

ERP and Articles 29-30

ESSENTIAL RELIGIOUS PRACTICES

Shirur Mutt (1954) -> religious/secular distinction; doctrinal essentiality
Durgah Committee (1961) -> narrower filter
sequence: claimant -> religious/secular -> essentiality -> explicit limits
-> competing rights/reform -> proportionality
defence: protected religious core
criticism: judges as theologians; frozen textual religion
Sabarimala: state 2018 majority only absent later final verified authority

ARTICLE 29

(1) any section of citizens: language/script/culture
(2) no citizen denied covered admission only on religion/race/caste/language
not minority-exclusive

ARTICLE 30

religious/linguistic minorities establish/administer institutions
T.M.A. Pai (2002): generally State-wise minority unit
St Xavier's / P.A. Inamdar: autonomy with regulatory excellence.

Article 32, Article 226 and five writs

ARTICLE 32

- itself a Fundamental Right
- Supreme Court forum for Part III enforcement
- original but not exclusive; Ambedkar's 'heart and soul'

ARTICLE 226

- High Court -> Fundamental Rights + other legal rights + public duties
- wider subject matter and non-State public-duty reach

WRIT BY DEFECT

- habeas corpus -> unlawful detention, including private detention
- mandamus -> compel public duty
- prohibition -> stop threatened jurisdictional excess
- certiorari -> quash completed defective order
- quo warranto -> test legal authority to public office

PIL: relaxed standing/access device; full institutional doctrine belongs Topic 18.

Savings, property, special powers and emergency distinction

31A -> specified reform categories; defined Article 14/19 protection

31B -> Ninth Schedule

Waman Rao 1981 + I.R. Coelho 2007 -> post-24 APR 1973 review

31C -> genuine Article 39(b)/(c) laws; not every DPSP

Minerva Mills 1980 -> extension invalid

Property Owners Association 2024 -> original clause survives;

not every private asset qualifies

300A -> every person; authority of law; constitutional not Fundamental Right

33 -> Parliament tailors FRs for specified forces/services

34 -> indemnity/validation where martial law existed

35 -> Parliament-only listed Part III legislation

358 -> automatic Article 19 effect only in war/external-aggression Emergency

359 -> Presidential order; specified enforcement; never Articles 20 or 21

MARTIAL LAW != NATIONAL EMERGENCY.

Current status, PYQ rail and answer spine

CURRENT STATUS CHECKED 7 SEPTEMBER 2026

Electoral Bonds (15 FEB 2024) -> funding information / Article 19(1)(a)
Davinder Singh (1 AUG 2024) -> evidence-based SC sub-classification allowed
Property Owners Association (5 NOV 2024) -> original Article 31C survives
Supriyo review (9 JAN 2025) -> dismissed; no Navtej-to-marriage overstatement
BNS 152 -> notice 28 AUG 2025; no located final merits decision
DPDP -> phased commencement; later tranches still future
Harish Rana (11 MAR 2026) -> CANH withdrawal within passive-euthanasia safeguards;
active euthanasia not legalised

PYQS

Mains 6: 2019 secularism; 2021 equality; 2022 movement; 2023 life/gender;
2024 privacy-DNA
Objective 15: 2018-2026; only held final local-official key is 2024 Q76 = D

ANSWER SPINE

claim -> exact Article -> named case/statute -> mechanism -> counter-position
-> qualification/current status -> remedy -> graded conclusion.